

Statistics Act, 2022

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Chapter-1

Preliminary

1. Short Title and Commencement: (1) This Act shall be called the "Statistics Act, 2079".

(2) This Act shall commence on the thirty-first day from the date of its certification. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Commission" means the National Planning Commission.

(b) "Computer Database" means a numerical detail, statistic, information, map, or concept formally prepared in numbers, letters, images, sound, or audio-visual format for the purpose of use in a computer or computer network system.

(c) "Office" means the National Statistics Office as per Section 23.

(d) "Census" means a method or process of completely collecting statistics of the relevant unit to obtain factual information on any subject.

(e) "Statistic" means details, records, or information including economic, social, physical, environmental matters, and the said term also denotes a numerical representation prepared by the systematic collection, presentation, or analysis of such details, records, or information.

(f) "Prescribed" or "as prescribed" means as prescribed or as specified in the rules made under this Act.

(g) "Council" means the National Statistics Council as per Section 19.

(h) "Chief Statistician" means the Chief Statistician as per Section 25.

(i) "National Statistics System" means the National Statistics System as per Section 3.

(j) "Electronic Record" means statistics, records, images, sound, or audio-visual material created and transmitted, received, or accumulated through any medium in electronic form.

(k) "Government Body" means a government body under the Government of Nepal, Provincial Government, or Local Level.

(l) "Survey" means a method or process of collecting statistics by selecting a sample for factual information regarding the activity, usage, and trend of a subject.

(m) "Public Institution" means the following institutions:-

(1) Commissions, corporations, authorities, companies, foundations, boards, centers, councils formed under prevailing federal law,

(2) Companies, banks, committees, or other similar organized institutions with full or partial ownership or control of the Government of Nepal,

(3) Universities, colleges, schools, research centers, or other similar academic or educational institutions operated by the Government of Nepal or receiving full or partial grants from the Government of Nepal,

(4) Institutions operated with loan, grant, or guarantee of the Government of Nepal,

(5) Institutions with full or partial ownership or control of, or receiving grants from, institutions mentioned in sub-clauses (1), (2), (3), or (4),

(6) Other institutions designated as public institutions by the Government of Nepal through a notification published in the Nepal Gazette.

(n) "Notified Order" means an order issued by the Government of Nepal for a specific statistical work by publishing a notice in the Nepal Gazette.

(o) "Institution" means a public, private, non-governmental, or cooperative institution. Chapter-2
National Statistics System, Collection and Publication of Statistics

3.

Establishment of National Statistics System: (1) The National Statistics System shall be established as an integrated system of statistics collected by the Office, Government Bodies, and Public Institutions in accordance with this Act and prevailing law. (2) Forms and records prepared for service delivery provided by a Government Body may be made interoperable, and the statistics obtained from such forms or records may be integrated into the National Statistics System. (3) The Office shall manage the National Statistics System and maintain coordination among the bodies integrated into that system. (4) The methods, procedures, and standards relating to the operation and management of the National Statistics System shall be as prescribed.

4. Determination of National Standards and Quality Relating to Statistics: (1) The Council shall determine the national standards and quality relating to statistics. (2) While determining the national standards and quality relating to statistics pursuant to sub-section (1), the following matters shall be taken as a basis:- (a) Nepali law and prevailing practice, (b) Concepts and definitions determined by the United Nations or its specialized agencies, (c) Sectoral classification of statistics, and (d) Other bases as prescribed. (3) The national standards and quality relating to statistics determined pursuant to sub-sections (1) and (2) shall include the following matters:- (a) Standard record format of details obtained from administrative records, (b) Method of collection, processing, analysis, and publication of results of statistics, (c) Sample selection process and method, (d) Statistic or indicator estimation process (metadata), (e) Geo-identification code number of Province, District, and Local Level, and (f) Other matters as prescribed. (4) While collecting, processing, analyzing, publishing, distributing, and storing statistics under this Act, it shall be done in accordance with the standards and quality determined pursuant to this section. 5. Collection of Statistics: (1) The Government of Nepal may issue a Notified Order to collect statistics on any subject. (2) Pursuant to the Notified Order as per sub-section (1), the Office shall collect statistics related to any person, household, institution, or government body. (3) The Office may give written notice to any person, household, institution, or government body to submit statistics of objects under their possession or control. (4) It shall be the duty of all concerned to make available statistics as per the order or notice under sub-section (1), (2), or (3). (5) After a Notified Order is issued pursuant to this section, the Chief Statistician may deploy a necessary number of officers and employees to collect such statistics. (6) The methods and procedures relating to the collection of statistics under this section shall be as prescribed. 6.

Right to Verify Statistics: (1) The Chief Statistician or an officer deployed by him/her may verify the truthfulness of the statistics collected pursuant to Section 5. (2) While verifying pursuant to sub-section (1),

the Chief Statistician or the concerned officer shall have the following powers:- (a) To ask questions of any person if there is reasonable ground to believe that such person knows about the matter related to such statistics for the reliability of the collected statistics, (b) To give notice to provide statistics again if the collected statistics are incomplete or if additional statistics are needed for their reliability, (c) To enter any building, land, or compound under the possession or control of any person, institution, or household having the duty to provide statistics, after giving prior notice. 7. Government Bodies or Public Institutions May Collect Statistics: (1) If the responsibility to carry out any work relating to the collection of statistics is assigned to any Government Body or Public Institution under prevailing law, such Body or Institution shall carry out the work of collecting statistics for that purpose. (2) The statistics collected by the Bodies or Institutions pursuant to sub-section (1) shall be integrated into the National Statistics System. 8.

Provision Relating to Permission: (1) A Government Body or any institution wishing to collect or publish statistics with national-level representation shall obtain permission from the Office. (2) Notwithstanding anything contained in sub-section (1), permission pursuant to this section shall not be required in the following circumstances:- (a) For a Government Body or Public Institution as per sub-section (1) of Section 7 to collect or publish statistics under prevailing law, (b) To collect or publish statistics for internal purposes, (c) To collect or publish statistics for academic or private study research under prevailing law, or (d) To collect or publish statistics for research work based on the curriculum. (3) For permission pursuant to sub-section (1), an application shall be submitted to the Office in the prescribed format including the purpose, scope, method, and estimated cost of the collection of statistics. (4) Upon examining the application and documents received pursuant to sub-section (3), if such collection of statistics appears reasonable, the Office shall grant permission to such Government Body or institution in the format as prescribed. (5) While granting permission pursuant to sub-section (4), the Office may specify the method, system, or other necessary conditions to be adopted during the collection of statistics. (6) Notwithstanding anything contained elsewhere in this section, the Office shall not grant permission to collect and publish statistics in the following circumstances and subjects:- (a) If it appears to have an adverse effect on the national interest, peace, security, or diplomatic relations of the country, (b) If the Office itself has a program to collect or cause to collect statistics, or if the responsibility to collect statistics has been assigned to a Government Body or Public Institution under Section 7, or (c) If prohibited by prevailing law. 9. Statistics Must Be Certified: Before using statistics collected upon obtaining permission under Section 8, or publishing results obtained from such statistics, they must be certified as prescribed by the Office. 10.

Provision Relating to Confidentiality: (1) For the purpose of maintaining the confidentiality of personal statistics obtained from any source or medium under this Act, while using or causing to be used such statistics, the Office, Government Body, or Institution shall do or cause to be done as follows:- (a) Use such statistics and its computer database, electronic record, or any part only for collective statistical purposes, and (b) Without the written consent of the person providing such statistics or his/her authorized representative, not show, publish, or submit as evidence in any other body to anyone other than the concerned authorized officer. (2) Notwithstanding anything contained in sub-section (1), if requested by an investigation officer or court during the investigation or hearing of a case under this Act, that sub-section shall not be deemed to prevent making available such statistics, computer database, or electronic record. 11. Publication of Statistical Details: If statistics collected by the Office, Government Body, or Public Institution under Section 5 or 7 are required to be published, the concerned body that collected such statistics may publish them. 12. Processing, Storage, and Distribution of Statistics: (1) The body or institution collecting statistics shall process them within a specific time limit.

While processing statistics, defined methods and procedures of census and survey and automated or latest systems shall be adopted. (2) The statistic producer shall adopt certain standards and contemporary methods while storing statistics, ensuring they can be easily disseminated and stored for a long time without being destroyed. (3) While storing statistics pursuant to sub-section (2), after the statistical purpose is achieved, details revealing personal identity shall be removed and then stored. (4) While using and distributing statistics collected under this Act, the following shall be done:- (a) Statistics obtained from census, survey, or administrative records, except as specified in prevailing law, shall be used exclusively for statistical work, (b) Micro raw data may be made available only upon written request by the user, Explanation: For the purposes of this section and sub-section (1) of Section 18, "Micro raw data" means details obtained from the informant prepared in a manner that does not reveal the identity of the informant. (c) While making micro raw data available pursuant to clause (b), it shall be made available subject to compliance with the conditions as prescribed, (d) All types of statistics must be accessible to users, and (e) The user of statistics must necessarily mention the source of the statistics. (5) While making micro raw data of a census available pursuant to clause (b) and (c) of sub-section (4), it may be made available only partially. (6) While making statistics available to a user as prescribed, the Office shall make them available by collecting fees as prescribed based on the cost thereof. 13. Duties of Collector, Producer, and User of Statistics: (1) Before collecting statistics under this Act, the collector of statistics shall inform the respondent about the purpose, objective, and confidentiality related to the collection of statistics. (2) The collector of statistics shall not record statistics arbitrarily or contrary to the purpose of collecting statistics, or tamper with the statistics provided by the respondent. (3) The collector of statistics shall not use any personal details obtained during the collection of statistics for any purpose other than the purpose for which the statistics were collected, or make them available to anyone. (4) The producer of statistics, while producing or publishing statistics, and the user of statistics, while using statistics, shall do so in a manner that does not disturb social and cultural harmony and peace and order. 14.

No Use or Publication of Disaggregated Statistics Without Representation: (1) Based on statistics collected through a census in a particular place or area under this Act, disaggregated statistics shall not be used or published that purport to show the economic, social, cultural, or other similar condition of another place, area, or geographical or administrative unit lacking statistical representation. (2) Where statistics are collected through a survey in more than one particular place or area under this Act, disaggregated statistics shall not be used or published based thereon that purport to show the economic, social, cultural, or other similar condition of only a specific place or area, except to prepare results based on the overall statistics. Chapter-3 Collection of Statistics by Provincial Government and Local Level 15. Provincial Government and Local Level May Collect Statistics: (1) The Provincial Government or Local Level may collect, process, analyze, publish, distribute, or store statistics required by them under provincial or local law. (2) While collecting, processing, analyzing, publishing, distributing, or storing statistics pursuant to sub-section (1), the national standards and quality relating to statistics as per Section 4 shall be followed. (3) While collecting, processing, analyzing, publishing, distributing, or storing statistics pursuant to sub-section (1), it shall be done based on the following criteria as well:- (a) If statistics collected by the Government of Nepal or nationally collected statistics can be used, not to collect statistics on that subject, (b) Collection, processing, analysis, publication, distribution, or storage of statistics shall be done with mutual coordination and cooperation among the Federal, Provincial, and Local levels, and (c) While publishing or distributing results obtained from the analysis of collected statistics, it shall be done in a user-friendly manner. (4) While collecting statistics, the Provincial Government or Local Level shall exercise and fulfill the powers and duties vested in the Office under this Act. (5) While collecting, processing, analyzing, publishing, distributing, or storing statistics, the Provincial Government or

Local Level shall also follow the provisions of Sections 10, 12, 13, and 14. (6) The statistics collected by the Provincial Government or Local Level may be integrated into the National Statistics System. 16. May Use Statistics: The Office may use statistics on any subject collected by the Provincial Government or Local Level if it deems it appropriate or necessary to use such statistics. Chapter-4 Electronic Records, Use and Access to Statistics 17.

Use of Electronic Records: (1) The Office, Government Bodies or Public Institutions under Section 7, Provincial and Local Levels shall make arrangements to keep statistics collected by them in electronic records. (2) Statistics collected by any Government Body or institution upon obtaining permission under Section 8 may be kept in electronic records. (3) The record kept pursuant to sub-section (1) or (2) may be integrated as prescribed with the record kept under prevailing law. (4) Other provisions relating to the use and authenticity of the record integrated pursuant to sub-section (3) shall be as prescribed. 18. Access to Statistics: (1) Access may be provided, wholly or partially, through electronic or other means, to processed, semi-processed, or micro raw data collected by the Office or Government Bodies or Public Institutions under Section 7, not inconsistent with this Act. (2) The Office shall have access to the Management Information System located in the service providing body or other bodies integrated into the National Statistics System. (3) The methods and procedures for providing access to statistics shall be as prescribed. Chapter-5 National Statistics Council 19. Formation of the Council: For the purpose of overseeing, directing, controlling, and regulating the proper development, management, and research related work of the National Statistics System, there shall be a National Statistics Council as follows:- S.N.

Designation Position (a) Vice-Chairperson, National Planning Commission Chairperson (b) Member, National Planning Commission (looking after Statistics subject) Member (c) Governor, Nepal Rastra Bank Member (d) Executive Chairperson, Policy Research Institute Member (e) Secretary, Office of the Prime Minister and Council of Ministers Member (f) Secretary, Ministry of Finance, Government of Nepal Member (g) Secretary, Ministry of Industry, Commerce and Supplies, Government of Nepal Member (h) Secretary, Ministry of Agriculture and Livestock Development, Government of Nepal Member (i) Secretary, Ministry of Home Affairs, Government of Nepal Member (j) Secretary, Ministry of Land Management, Cooperatives and Poverty Alleviation, Government of Nepal Member (k) Secretary, Ministry of Women, Children and Senior Citizens, Government of Nepal Member (l) Secretary, Ministry of Education, Science and Technology, Government of Nepal Member (m) Secretary, Ministry of Labour, Employment and Social Security, Government of Nepal Member (n) Secretary, Ministry of Federal Affairs and General Administration, Government of Nepal Member (o) Secretary, Ministry of Health and Population, Government of Nepal Member (p) Secretary, National Natural Resources and Fiscal Commission Member (q) Secretary, National Planning Commission - Member (r) Seven representatives, one each from the Provincial Ministry or body looking after planning or statistics subject designated by the Provincial Government - Member (s) Head, Central Department of Statistics, Tribhuvan University - Member (t) Chief Statistician - Member-Secretary 20. Meeting and Decision of the Council: (1) The meeting of the Council shall be held on the date, time, and place specified by the Chairperson of the Council. (2) The meeting of the Council shall be held at least twice a year. (3) At least forty-eight hours before the meeting of the Council, the Member-Secretary of the Council shall inform all members of the Council of the matters to be discussed in the meeting. (4) The meeting of the Council shall be chaired by the Chairperson of the Council, and in his/her absence, the most senior member present at the meeting shall chair the meeting. (5) In the meeting of the Council, concerned office holders or experts may be invited as necessary. (6) The Office shall act as the secretariat of the Council. (7) Other procedures relating to the meeting of the Council shall be as determined by the Council itself. 21.

Functions, Duties, and Powers of the Council: In addition to the functions, duties, and powers mentioned elsewhere in this Act, the functions, duties, and powers of the Council shall be as follows:- (a) To formulate short-term, medium-term, and long-term plans, policies, and strategies relating to statistics, (b) To approve the annual work plan of the Office, (c) To coordinate and facilitate statistics management of the Federal, Provincial, and Local Levels, (d) To maintain coordination among statistic producers and give directives as necessary, and (e) To review past works and actions relating to the collection, storage, processing, and publication of results of statistics and give directives to the concerned body as necessary. 22. May Form Inter-Agency Statistical Working Groups: (1) The Council may form inter-agency statistical working groups as necessary to maintain coordination and uniformity in thematic statistical collection methods, access to statistics, and statistics management. (2) The functions, duties, and powers of the inter-agency statistical working groups formed pursuant to sub-section (1) shall be as specified by the Council at the time of forming such working groups. Chapter-6 National Statistics Office and Chief Statistician 23. Establishment of the Office: (1) There shall be a National Statistics Office under the Office of the Prime Minister and Council of Ministers as the central body for carrying out work relating to statistics. (2) There shall be statistics offices subordinate to the Office at such number and places as specified by the Government of Nepal. 24.

Functions, Duties, and Powers of the Office: The functions, duties, and powers of the Office shall be as follows:- (a) To prepare a draft of policies, plans, and strategies relating to statistics and submit them to the Council, (b) To ensure the proper development, management, and promotion of the National Statistics System and carry out inter-agency coordination for that purpose, (c) To prepare and implement an operational work plan for census, survey, and other sectoral statistical work for the statistics to be collected by the Office, (d) To make available necessary statistics to the Government of Nepal, Provincial Government, and Local Level for planning and policy determination, (e) To carry out work relating to the determination of levels and certification of statistics, (f) To secure records relating to statistics, (g) To arrange for the publication and distribution of statistical details, (h) To act as a central data bank, (i) To obtain statistics collected by Provincial and Local Levels and integrate them into the National Statistics System, (j) To assist in the development of the statistical system of Provincial and Local Levels, (k) To assist in the capacity enhancement relating to statistics of bodies carrying out work relating to the collection of statistics under prevailing law, (l) To carry out examination, monitoring, inspection, and supervision of matters related to the collection of statistics under this Act, (m) To carry out work relating to study, research, and training on statistics, and (n) To make available statistical details or information requested by the Government of Nepal or the Commission. 25. Chief Statistician: There shall be one Chief Statistician of the Gazetted Special Class of the Federal Civil Service to act as the administrative chief of the Office. Chapter-7 Offenses and Penalties 26.

Offenses and Penalties: (1) If any person commits any of the following acts, he/she shall be deemed to have committed an offense under this Act:- (a) If anyone creates an obstruction in the work of collecting statistics under this Act, (b) If any person or institution having the duty to provide information relating to personal or unit statistics under sub-section (4) of Section 5 or sub-section (2) of Section 6 knowingly fails to provide such information, refuses to provide it, or knowingly provides false information relating to any statistic, (c) If anyone collects or causes to collect statistics without a license under sub-section (1) of Section 8, (d) If anyone uses statistics or publishes results thereof without certification from the Office under Section 9, (e) If anyone, being responsible for statistics, computer database, or electronic records, negligently or knowingly destroys or causes to destroy them, or otherwise causes loss or damage or attempts to cause loss or damage, (f) If anyone uses or causes to use available statistics, computer database, or electronic records contrary to Section 10, (g) If the collector, producer, or user of statistics fails to fulfill their duties under sub-section (2),

(3), or (4) of Section 13, (h) If anyone uses or publishes statistics contrary to Section 14, (i) If, after any order or notice has been issued to anyone under this Act, anyone publicizes or causes to publicize that such notice or order should not be complied with, or that any statistics or information requested by the authorized officer should not be given or made available, or puts pressure not to provide such statistics or information, or (j) If anyone commits any other act contrary to this Act. (2) If anyone commits an offense under sub-section (1), the following penalties shall apply:- (a) For an offense under clause (a), a fine of up to ten thousand rupees, (b) For an offense under clause (b), (g), or (i), a fine of up to twenty thousand rupees or imprisonment for up to six months or both, (c) For an offense under clause (c), (d), (e), (f), or (h), a fine of up to forty thousand rupees or imprisonment for up to one year or both, and (d) For an offense under clause (j), a fine of up to five thousand rupees or imprisonment for up to one month or both. (3) If an institution commits an offense under this Act, and the office holder or employee committing such an offense is identified, such office holder or employee shall be penalized; if not identified, the person acting as the head of such institution at the time of the offense shall be penalized. (4) Anyone who attempts, abets, or is an accomplice to an offense punishable under this Act shall be liable to half the penalty prescribed for such offense. (5) Notwithstanding anything contained elsewhere in this section, if the act under sub-section (1) is also deemed an offense under other prevailing law, it shall not be deemed to prevent the filing of a separate case and imposition of penalty under such law for such offense.

27. Adjudicating Officer and Procedure: (1) The Chief District Officer shall have the authority to initiate proceedings and adjudicate cases relating to the offense under Section 26.

(2) While conducting proceedings and adjudicating a case filed under this Act, the procedure under the Summary Procedure Act, 2028 shall be adopted. 28. Government of Nepal to be Plaintiff: The Government of Nepal shall be the plaintiff in a case under this Act, and such case shall be deemed to be included in Schedule-1 of the National Criminal Procedure Code, 2074. 29. Appeal: Any party dissatisfied with the decision or order made by the Chief District Officer under Section 27 may appeal to the concerned District Court within thirty days from the date of such decision. Chapter-8

Miscellaneous

30. May Deploy for Work: (1) The Office may request employees of the Federal, Provincial, or Local Level for census, survey, or other statistical work under this Act.

(2) Upon receipt of a request for employees pursuant to sub-section (1), the concerned body may deploy employees.

(3) The Office may obtain services on contract from individuals or institutions for any census, survey, or other statistical work and data processing.

(4) The facilities to be provided to employees deployed pursuant to sub-section (1), and the process for taking services on contract under sub-section (3), the terms of service, remuneration, and other facilities of persons taken on service contract shall be as specified by the Government of Nepal. 31. Must Be Done in a Time and Cost-Effective Manner: (1) The Office or Government Bodies or Public Institutions under Section 7 must produce, process, store, publish, and distribute statistics, or cause it to be done, in a time and cost-effective manner.

(2) Priority shall be given to the use of statistics obtained from administrative records, latest sources, and other published sources as far as possible, using an integrated information system and electronic equipment.

32. Delegation of Authority: The Chief Statistician may delegate some of the powers conferred on him/her

under this Act to subordinate officers. 33. Publication of Report: The Office shall publish a report including the annual work details of statistical work within four months of the end of the fiscal year and make it public through electronic means as well. 34. To Be as Per Prevailing Law: Matters mentioned in this Act shall be in accordance with this Act, and other matters shall be in accordance with prevailing law. 35. Power to Make Rules: The Government of Nepal may make necessary rules to implement this Act. 36.

May Make Directives or Procedures: (1) Subject to this Act or the rules made under this Act, the Government of Nepal may make and enforce directives on the following matters:- (a) Operation of national-level censuses and surveys, (b) Obtaining statistics and use of statistical methods, (c) Implementation of the National Statistics System, and (d) Survey permission. (2) Subject to this Act or the rules made under this Act, the Office may make and enforce procedures on the following matters to conduct work relating to the production, processing, storage, publication, and distribution of statistics effectively, systematically, and economically in a procedural manner:- (a) Management of administrative records, (b) Making statistics public, communicating, and distributing them, and (c) Collection of statistics, sample selection, analysis, and verification. 37. Measurement of Act Implementation: The Office of the Prime Minister and Council of Ministers shall measure the implementation of this Act within one year after the completion of five years from the commencement of this Act, and thereafter within one year after every five years, and submit a report thereof to the relevant committee of both houses of the Federal Parliament. 38. Repeal and Saving: (1) The Statistics Act, 2015 is hereby repealed. (2) All works and actions done under the Statistics Act, 2015 shall be deemed to have been done under this Act.